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CONTRACT AGREEMENT

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THE JERSEY CITY
BOARD OF EDUCATION

and

THE JERSEY CITY
EDUCATION ASSOCIATION

covering the period

SEPTEMBER 1, 1978

to

AUGUST 31, 1980

JCEA -- HCEA -- NJEA -- NEA

X-8/80

JERSEY CITY EDUCATION ASSOCIATION

2300 Kennedy Boulevard
Jersey City, New Jersey 07304
201-435-6600

J.C.E.A. EXECUTIVE BOARD

1978-1979

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SEPTEMBER 1, 1978

to

AUGUST 31, 1980

Ratified by the Jersey City Board of Education
88 Clifton Place
Jersey City, N. J.

PREAMBLE

The Board of Education of Jersey City and the Jersey City Education Association recognize their common goal to be the provision of the finest educational opportunities for the boys and girls of the Jersey City Public Schools.

To work toward the attainment of this goal, it is also recognized that the joint efforts of the Board of Education and the Jersey City Education Association are required and that it is essential to fulfillment that they, through their respective representatives, engage in good faith negotiations on matters pertaining to salaries and terms and conditions of employment.

This Agreement is made and entered into this 30th day of November, 1978, by and between the *Jersey City Board of Education*, (hereinafter referred to as the "Board") — and the *Jersey City Education Association*, (hereinafter referred to as the "Association" or the "JCEA").

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ARTICLE 1

RECOGNITION

1-1. The Board hereby recognizes the Association as the exclusive and sole bargaining representative for all personnel included in the bargaining unit.

1-2. The Board has determined that the provisions of Section 19 of Article 1 of the New Jersey Constitution can best be effectuated by entering into this Agreement with the Association, and the Board hereby recognizes the Association for purposes of professional negotiation as the exclusive representative of those employees of the Public Schools of Jersey City, certified by the State Department of Education, in the following unit including those with tenure, probationary status and on contract, implied or stated, excepting those on per diem assignment.

1-3. The following category of "teachers": physical education, pre-vocational, industrial art, pre-vocational - home economics, vocational, chronically ill; educable; deaf; home economics; in-charge-of-annex; vocational—related work; trainable; hospital class, neurologically impaired; emotionally disturbed; socially maladjusted; learning disability consultant (teacher); home instruction; remedial arithmetic; visiting teacher (school social worker); teacher specialist-music-art; appointed day school K-12, including department coordinators; contract day school K-12; and state certified day school K-12.

1-4. The following category of "evening high school" personnel: guidance; teacher-guidance; teachers appointed; teachers contract; teachers state certified; teachers who work in schools during the day.

1-5. School psychologist; teachers on leave; student personnel services (guidance teachers).

1-6. Assistant to principals, high school; vice-principals elementary school; attendance department; senior officer and permanent officers; school nurses.

1-7. This recognition shall not impair the rights of any employee or group of employees under Section 19 of Article 1 of the New Jersey Constitution.

1-8. Unless otherwise indicated, the term "teachers" when used hereinafter in this Agreement shall refer to all employees represented by the Association in the negotiating unit, and references to male teachers shall include female teachers.

ARTICLE 2

INDIVIDUAL GRIEVANCE PROCEDURE

2-1. To promote, to the highest possible degree, harmonious employer-employee relations, it is essential that procedures to resolve grievances be established.

2-2. A grievance may be considered to exist when an employee believes that an administrative procedure or policy adversely affects his-her working conditions or his-her welfare or violates the terms of this Agreement or any subsequent agreement entered into pursuant to this Agreement.

2-3. In the wording of this statement of procedures, the term "employee" shall be taken to include all members of the bargaining unit.

2-3.1 Any aggrieved person may be represented at any stage of the grievance procedure by a representative selected or approved by the Association.

2-4 Any employee shall have the right to present his-her grievance through the steps described in the following paragraphs with assured freedom from restraint, interference, coercion, discrimination, or reprisal.

2-4.1. **STEP I**—Any employee who has a grievance shall first orally advise his-her principal (or immediate superior or department head, if applicable) of its existence. The principal shall meet with the employee within three (3) school days in an attempt to resolve the grievance at this level. Within three (3) school days after the discussion, the principal (or immediate superior or department head, if applicable) shall orally make known his decision to the employee.

2-4.2. **STEP IIA**—Should discussion at the level of STEP I not result in a satisfactory resolution, the employee may present his-her grievance within five (5) calendar days to the Grievance Evaluation Team of the JCEA. The JCEA Grievance Evaluation Team will render a decision within seven (7) calendar days of receipt of the grievance. If the decision is that the grievance has no merit, the person involved will be so notified, in writing, by the Chairman of the JCEA Grievance Evaluation Team.

2-4.3. **STEP IIB**—If the decision of the JCEA Grievance Evaluation Team is that the grievance does have merit, it shall, within the 12-calendar-day period referred to in Step IIA above, present a written statement of its position on the matter to the principal (or immediate superior or department head, if applicable) and to the aggrieved. The employee in further discussion of his grievance, may at this step, be accompanied and assisted by not more than two (2) representatives of the Association, designated by the JCEA Grievance Evaluation Team. The principal (or immediate superior or department head, if applicable) shall hold a meeting upon request of the JCEA Grievance Evaluation Team and render a written decision within five (5) school days of receipt of the written statement from the JCEA Grievance Evaluation Team. The principal's (or immediate superior's or department head's, if applicable) decision shall be prepared in triplicate: one copy to the employee, one copy to the JCEA Grievance Evaluation Team, and one copy to the Superintendent of Schools.

2-4.4. **STEP III**—If the grievance is not resolved to the satisfaction of the employee at the level of STEP II, the employee may appeal, within ten (10) calendar days, to the Superintendent of Schools in a written statement, setting forth details and grounds on which the grievance is based and attaching all pertinent documents. The Superintendent or an Assistant Superintendent shall confer with the parties concerned, together or separately, within four (4) calendar days. He shall then, within six (6) school days, render his decision. A written statement of his decision and all supporting reasons shall be sent to the aggrieved, to the principal (or his immediate superior or department head, if applicable) and the JCEA Grievance Evaluation Team.

2-4.5. STEP IV—If the grievance is not resolved at Step III to the satisfaction of the employee, he-she may request a review by the Board of Education within seven (7) school days after the employee receives the written decision. This request shall be made in writing through the Superintendent of Schools, who shall attach all related documents and forward the request to the Board of Education. The Board shall review the case; shall hold a hearing with the employee, if requested by the employee; and shall render a decision in writing ten (10) calendar days of the receipt of the grievance. Copies of the decision of the Board of Education shall be sent to the aggrieved, to the Superintendent of Schools, and to the JCEA Grievance Evaluation Team.

2-5. An aggrieved employee shall institute action under the provisions hereof within fifteen (15) school days following the occurrence complained of. However, any aggrieved employee whose grievance deals with those items which are contained in the annual statement, shall have fifteen (15) months following receipt of said statement to file his-her grievance.

2-5.1 The annual statement referred to in 2.5 above shall include the following information:

2-5.2. Annual salary, step on guide, prior service pay, longevity pay, column on guide, extra compensation and number of sick leave days in accumulated sick leave bank as of September 1 next following the annual statement, and Hospital Plan in which the employee is enrolled.

2-6.1. An employee whose grievance has been deemed to be without merit by the JCEA Grievance Evaluation Team shall retain the right of written appeal to the Superintendent of Schools.

2-6.2. Should circumstances necessitate hearings or discussion of a grievance during school hours, there shall be no loss of pay suffered by reason thereof by the aggrieved or his-her representatives, if they should be employees of the Board of Education.

2-6.3. In the event no decision is forthcoming within prescribed time limits at any step, the aggrieved may, upon notice, proceed to the next step.

2-6.4. Any of the time limits specified may be extended by mutual agreement.

2-6.5. In the event a grievance is brought up for consideration at the end of a school year, and if the principal (or immediate superior or department head, if applicable) is not available after the closing of school for procedures outlined in Step II, the employee may proceed directly to Step III, if the JCEA Grievance Evaluation Team contends that there is merit to the matter.

2-6.6. If the grievant is not satisfied with the disposition of the grievance at Step IV, the grievant shall have the right to request arbitration pursuant to the rules and regulations established by the American Arbitration Association. A request for arbitration shall be made not later than fifteen (15) school days after the disposition of the grievance at Step IV.

The arbitrator shall proceed with a hearing and submit a written decision in the shortest possible time setting forth his findings of fact, reasoning and conclusions on the issue(s) submitted. The decision of the arbitrator shall be submitted to the Board and the Association and shall be final and binding on both parties. The arbitrator shall be without power to alter, amend or modify the terms of this Agreement. In addition, the arbitrator shall be without power or authority to make any decision which requires the commission of an act prohibited by law or which is violative of the terms of this Agreement. The cost of arbitration shall be paid by the unsuccessful party.

2-7. The function of these procedures is to assure equitable and proper treatment under existing rules, policies, procedures and contractual agreements which relate to or affect the employee. They are not to be used for changing existing rules, policies, procedures, and contractual agreements or for establishing new ones.

2-8. If, in the judgment of the JCEA Grievance Evaluation Team, a grievance affects a group or class of teachers, the GET may submit such grievance, in writing, to the Superintendent directly, and the processing of such grievance shall be com-

menced at Step III. The GET may process such a grievance through all levels of the grievance procedure, even though the aggrieved person does not wish to do so.

2-9. All meetings and hearings under this procedure shall not be conducted in public and shall include only such parties in interest and their designated or selected representatives.

ARTICLE 3

SUCCESSOR AGREEMENT

3-1. The parties agree to enter into collective negotiations over a successor Agreement in accordance with Chapter 123, Public Laws of 1974, in a good-faith effort to reach agreement on all matters concerning the terms and conditions of teachers' employment. Such negotiations shall begin not later than October 3 of the school year in which this Agreement expires. Any agreement so negotiated shall apply to all teachers, be reduced to writing, be signed by the Board and the Association, and be submitted to the Board for adoption.

3-2. Neither party in any negotiations shall have any control over the selection of the negotiating representatives of the other party. The parties mutually pledge that their representatives shall be clothed with all necessary power and authority to make proposals, consider proposals, and make counter-proposals in the course of negotiations to the extent permitted by State statutes.

3-3. Should a mutually acceptable amendment to this Agreement be negotiated by the parties, it shall be reduced to writing, be signed by the Board representatives and the Association representatives and be submitted to the Board for possible adoption.

3-4. The Board agrees not to negotiate concerning said employees in the negotiating unit with any organization other than the Association for the duration of this Agreement. The Board and the Association also agreed that all negotiations be conducted in private and that strict confidentiality be maintained by both parties.

3-5. This Agreement shall not be modified in whole or in part by the parties except by an instrument in writing duly executed by both parties.

3-6. Negotiations shall commence with pre-negotiation sessions which will include such items as:

- A. Place of meeting
- B. Time of meeting
- C. Frequency of meetings
- D. Length of meeting
- E. Composition and size of negotiating teams
- F. Use of consultants
- G. Procedure for presentation of proposals
- H. Presentation of new proposals subsequent to initial presentation of proposals
- I. Agenda presentations
- J. Time limits

3-7. Incident to negotiations, the Board will make available **all** relevant data and records, within reason, that may be requested by the Association.

3-8. If negotiations reach an impasse, either party may have recourse to the provisions of Chapter 123 of the Laws of 1974 in addition to such other courses of conduct as the circumstances may warrant.

3-9. In the event the Association desires to negotiate any proposal which has not heretofore been negotiated, it shall submit same in writing to the Board at the appropriate time. Proposals not accepted shall be deemed on the table from time to time.

3-10. The Board and the Association will make every good-faith effort to carry out the spirit as well as the letter of this Agreement.

ARTICLE 4

DEDUCTION FROM SALARY

4-1. The Board agrees to deduct from the salaries of its employees dues for any or all of the following: Jersey City Education Association, Hudson County Education Association, New Jersey Education Association, and National Education Association. Such deductions shall be made in com-

pliance with Chapter 233, Public Laws of 1969 (N.J.S.A. 52:14-15 9e) and under the rules established by the State Department of Education. Said monies, together with records of any corrections, shall be transmitted promptly to the treasurer of the JCEA following the monthly pay period in which deductions were made.

4-1.1.

AUTHORIZATION TO DEDUCT

ASSOCIATION MEMBERSHIP DUES

Name _____

Soc. Sec. No. _____

Address _____

School _____

School Position _____

4-1.2. Continuing Dues Deduction Authorization

—I hereby request and authorize the Disbursing Officer of the above school district to deduct from my earnings, until notified of termination, an amount required for current year membership dues and such amounts as may be required for dues in each subsequent year, all as certified by said organizations; such amounts to be paid to such person as may from time to time be designated by the local Association. This authorization may be terminated only by prior written notice from me effective January 1 or July 1 of any year. Upon termination of employment, the Disbursing Officer shall deduct any remaining amount due for the current school year. I waive all right and claim for monies so deducted and transmitted and relieve the Board of Education and its officers from any liability therefor.

4-2. The JCEA shall certify to the Board of Education, in writing, the current amount of the membership dues for the associations referred to in 4-1 above.

4-3. Deductions referred to in this Section shall be made on the first pay day of each month. The Board shall not be required to honor, for any deduction, authorizations that are delivered to it

later than one (1) week prior to the distribution of the payroll from which the deductions are to be made.

4-4. No later than September 30th of each year, the Board shall provide the Jersey City Education Association with a list of those employees who have voluntarily authorized the Board to deduct dues. The Board shall notify the Association monthly of any changes in said list. Any teacher desiring to have the Board discontinue deductions he-she has previously authorized, must notify the Board and the Association concerned, in the manner prescribed in Chapter 233 of Public Laws of 1969.

ARTICLE 5

BOARD RIGHTS AND RESPONSIBILITIES

5-1. The Board on its own behalf hereby retains and reserves unto itself all powers, rights, authority, duties and responsibilities conferred upon it and vested in it by the laws and constitutions of the State of New Jersey and the United States. The exercise of the foregoing powers, rights, authority, duties and responsibilities of the Board and the adoption of policies, rules, regulations and practices in furtherance thereof shall be limited only by the terms of this Agreement and then only to the extent such terms are in conformance with law.

ARTICLE 6

TEACHER RIGHTS

6-1. No teacher shall be disciplined, reprimanded, reduced in rank or compensation, or deprived of any professional advantage without just cause.

6-2. Whenever any teacher is required to appear before the Superintendent, Board, or any committee or member thereof concerning any matter which could adversely affect the continuation of that teacher in office, position or employment or the salary or any increments pertaining thereto, then that teacher shall be given prior written notice of the reasons for such meeting or interview and shall be entitled to have a representative of the Association present to advise and represent the teacher during such meeting or interview.

6-3. The teacher shall maintain the right and responsibility to determine grades within the grading policy of the Jersey City School District based upon the teacher's professional judgment of available criteria pertinent to any given subject area or activity to which the teacher is responsible.

6-4. No teacher shall be prevented from wearing pins or other identification of membership in the Association or its affiliates.

6-5. In every event—the teacher shall have authority in the classroom, provided the teacher's actions do not conflict with sound educational principles or state law.

ARTICLE 7

ASSOCIATION RIGHTS

7-1. The Association shall have the right to distribute, through the use of the teachers' mail-boxes, material dealing with the proper and legitimate business of the Association.

7-2. The principal and/or his designee shall be notified prior to the distribution of such materials.

7-2.1. Representatives of the JCEA, of the NJEA, and of the NEA shall have the right to enter the schools to meet with teachers during their preparation periods or lunch periods or after school to carry out appropriate Association business.

7-2.2. The President or his designee shall have the right to enter the school and meet with teachers at any time. This right shall not be abused.

7-2.3. The 1st Vice President or the designee of the President, shall have no more than two 1/2 days per full week of school to carry out appropriate Association business, provided that the aforesaid time shall not disrupt the educational process.

7-3. Representatives who enter the schools shall notify the principal or the designee of the principal, of their presence prior to meeting any teacher or group of teachers.

7-4. The Board shall provide bulletin boards to the Association for its exclusive use as sole bargaining agent. These shall be provided in schools in locations recommended by the Association and approved by the principal.

7-4.1. Bulletin boards shall be provided as follows: One (1) board to a school with a faculty of 35 teachers, or less. Two (2) boards to a school with a faculty of 35 to 70 teachers. Three (3) boards to a school with a faculty of 70 teachers, or more.

7-4.2. Existing bulletin boards which are in good condition shall be accepted by the Association.

7-5. No other bulletin board, display or mail space shall be made available to any other organization representing teachers on a school system-wide base.

7-6. Whenever any representative of the Association or any teacher participates during working hours in negotiations or grievance proceedings, that person shall suffer no loss of pay.

7-7. The Association may be granted permission to use school buildings, at reasonable hours for meetings. The usual procedure to obtain permission, in accordance with the Rules of the Board of Education, shall be followed.

7-8. An Association Building Director, if faced with an emergency situation requiring immediate attention, may request the immediate supervisor to relieve the building director temporarily.

7-8.1. To the extent that building directors, other than Copenhagen teachers, do not have at least one (1) preparation period a week, they will be given said preparation period, which they may devote, in their discretion, to the conduct of Association business, provided, however, that no more than fifteen (15) additional preparation periods per week for the entire school system will be made available for such purposes.

7-9. The rights and privileges of the Association and its representatives as set forth in this Agreement shall be granted only to the Association as the exclusive representative of the teachers and to no other organization.

ARTICLE 8
MEETINGS OF PRINCIPAL AND
J.C.E.A. DIRECTORS

8-1. The principal or his designee and the Association Directors, but limited to two (2), in his school, shall meet at least once a month during the academic year to discuss and attempt to resolve problems affecting the school, teacher morale, working conditions and other issues pertinent to the implementation of this contract.

8-2. The time and date of meeting shall be mutually agreed upon by the principal and the Association Directors.

ARTICLE 9
MEETINGS OF SUPERINTENDENT AND
J.C.E.A. PRESIDENT

9-1. The Superintendent and/or his representative and the President of the Association and/or his representative shall meet at least once a month during the academic year to discuss and attempt to resolve problems affecting the schools, teacher morale, working conditions, and other issues pertinent to the implementation of this contract.

9-2. The time and date of meeting shall be mutually agreed upon by the Superintendent and the President of the Association.

ARTICLE 10
TEACHER FACILITIES

10-1. The Board of Education and the Association agree that an area or facility shall be provided for the safe storage of a teacher's personal possessions used in the performance of his/her duties, in all schools.

10-2. Each school shall have the following facilities:

10-2.1. Space in each classroom in which teachers may store instructional materials and supplies, within reason.

10-2.2. Appropriately furnished rooms reserved for the exclusive use of teachers as faculty lounges, complete with refrigerator and cooking unit.

10-2.3. A public pay telephone, for the exclusive use of teachers: in high schools, one each in the men's faculty lounge and the women's faculty lounge; one in each elementary school, in a location jointly selected by the building principal and the JCEA Building Director(s).

10-2.4. A serviceable desk and chair for the exclusive use of each teacher.

10-2.5. Well lighted and clean teacher lavatories.

10-2.6. Copies, exclusively for each teacher's use of all texts used in each of the courses he-she is to teach.

10-2.7. Adequate chalkboard space in every classroom.

10-2.8. A complete and unabridged dictionary (which may be paperback) in every classroom.

10-2.9. Adequate books, papers, pencils, pens, chalk, erasers, and other such material required in daily teaching—distributed at the teacher's request—providing the requests are made sufficiently in advance, except in cases of emergency.

ARTICLE 11

MEMBERSHIP ON BOARD OF

PERSONNEL PRACTICES

11-1. The Association shall have a minimum of three (3) members appointed by the President of the Association, to serve on and be voting members of the Board of Personnel Practices. At least one member shall be from the elementary schols and at least one from the high schools.

ARTICLE 12

TEACHER EVALUATION

12-1. The Board and the Association agree, inasmuch as supervision and evaluation of teachers is a process in which those concerned are equally involved, that a committee made up of representatives of the principals, assistant principals, supervisors and representatives of the Association will be established to prepare joint recommendations as to policy regulating the supervisory function.

12-2. In cases where a teacher has been given an unsatisfactory rating, the teacher will be given a written statement setting forth the particulars of the unsatisfactory rating.

12-2.1. Where such rating endangers increment or contract status of the teacher for the ensuing year, the teacher must be notified of his status by April 1st.

12-2.2. When an unsatisfactory rating comes after April 30th, the teacher's contract status for the ensuing year cannot be denied except for cause.

12-2.3. Cause will be subject to the provision of the Grievance Procedure.

12-3. A teacher evaluation committee shall continue to meet. Such committee shall consist of three (3) teachers appointed by the Association and three (3) administrators appointed by the Board. The committee shall meet and submit a written report with recommendations on or before April 30, 1979.

ARTICLE 13

TEACHING ASSIGNMENTS

13-1. Teachers shall not be regularly assigned to teach subjects or grades outside the scope of their teaching certificate.

13-2. Assignments shall be given to teachers at least three (3) days before the closing of school.

13-3. Extra-compensation positions are those listed in Schedule H.

13-3.1. Whenever a vacancy exists in a position classified as an extra-compensation position, notice shall be posted in all schools inviting those qualified to apply in writing. The notice will contain requirements and duties. Each applicant shall submit the application by certified mail, return receipt requested.

13-3.2. In instances when immediate assignment is imperative, temporary assignment may be made. Notice of a vacancy will be posted within seven (7) school days after the vacancy occurs.

13-3.3. Selection of personnel to fill all vacancies will be made by the Board from an alphabetized list of those who apply within the time specified in the announcement. The Board will give preference, in making its selection, to qualified applicants presently employed by the Board, giving consideration to experience, seniority and quality of performance based upon prior written evaluations in the Jersey City School System.

13-4. Whenever vacancies or openings occur in those positions administered through the Board which provide extra or additional work and for which additional compensation is offered, notice will be posted in the schools inviting those qualified to apply in writing.

13-4.1. This category shall consist of the following positions:

Summer School and After School Teaching
Accredited Evening High School Teaching
Athletic Coaches
Book and Curriculum Evaluation positions
Special Project positions

The Board shall select personnel to fill such positions on the basis of criteria published. Priority in selection of personnel for positions in the Accredited Evening High School shall be based on prior teaching experience in the Accredited Evening High School. Additional assignments shall be made from a list of those teachers in the Jersey City school system who apply in writing.

13-5. New positions, if and when established by the Board, shall be filled by selection by the Board from those who apply in writing.

13-5.1. Selection will be based on published criteria.

13-5.2. Notice of such new positions will be posted in all schools. Published notices will contain the duties, requirements and qualifications for the position.

13-6. Schedules of teachers who are assigned to more than one school shall be so constructed as to limit, insofar as possible, the amount of inter-school travel to a minimum.

13-7. The Superintendent shall assign all newly appointed personnel to their specific positions within that subject area and/or grade level for which the Board has appointed the teacher. The Superintendent shall give notice of assignments to new teachers as early as possible but no later than August 22.

13-8. In the event that changes in schedules, class and/or subject assignments, building assignments or room assignments are proposed, said teacher affected shall be notified promptly in writing.

13-9. In order to assure that pupils are taught by teachers working within their areas of competence, teachers shall not be assigned outside the scope of their teaching certificates and/or their major or minor fields of study, except where an emergency exists.

ARTICLE 14

TEACHER FILES

14-1. Teachers, upon presentation of advance written request, may inspect their personnel files.

14-2. Teachers shall have the right to add written comments to any material filed and these written comments, after review by the Assistant Superintendent of Schools in charge of Personnel, shall be made part of the teacher's personnel file.

14-3. In the event material of a critical, derogatory or unfounded nature is to be placed on file, the teacher involved shall be notified and given the opportunity to review such material. The teacher's written comments, if any, relative to such material shall be made part of the teacher's file.

14-4. Completed evaluation forms are to be kept in personnel folders of all teachers.

ARTICLE 15

TEACHER MEETINGS

15-1. Principals of individual schools or other duly authorized personnel shall notify the faculty of any meeting to be held at which their attendance is required at least two (2) days in advance of the meeting date, except in emergencies. Notice of the meeting shall include the proposed agenda.

15-2. The Board and the Association recognize that meetings requiring attendance of the entire faculty of a building after regular school hours should only be called for such items as those which relate to the safety and welfare of students and teachers and for other significant purposes.

15-3. Normally, no more than two (2) meetings per month shall be called and, normally, such meetings shall not exceed forty-five (45) minutes. If, in the judgment of the principal, it is necessary to hold any additional meetings, the Association representative will be notified, under normal circumstances, two (2) days in advance and, in all circumstances, in advance.

15-4. The Association Director shall have an opportunity to speak during any meeting for a period normally not longer than five (5) minutes.

15-5. Should the teachers in any building feel that an excessive number of meetings are being called, they may act according to the Grievance Procedure beginning at Step III.

ARTICLE 16

PROMOTIONS

16-1. The administrative and supervisory positions listed below shall be filled by Board appointment, in order of numerical ranking from appropriate eligibility lists.

16-1.1. Numerical ranking shall be determined through competitive examinations conducted by the

Board of Personnel Practices. The examinations shall consist of a written section which shall have a weight of 40%. *No person shall be allowed to take the oral section of the examination unless he has passed the written part.* The oral interview shall have a weight of 60%. The Board of Personnel Practices conducting the oral interview shall include professional educators not regularly employed by the Board of Education.

16-2. The positions of Superintendent of Schools, First Assistant Superintendent of Schools and Assistant Superintendent of Schools are not within the scope of this promotional policy.

16-3. Positions covered by this policy are as follows:

Director, High School Principal, Assistant Director, Grammar School Principal, High School Vice Principal, Supervisor, Primary Principal, Grammar School Assistant Principal, and Assistant Supervisor.

16-4. It is agreed that, in administering this policy:

Vacancies to be filled shall be publicized in all schools within ten (10) school days after an opening occurs.

16-5. All publicity and notices of such vacancies and positions shall set forth qualifications for and duties of the position.

16-6. Promotional examinations *shall* be held within sixty (60) days following said announcement. Any necessary extension of this period *shall* be made by mutual agreement between the Office of the Superintendent of Schools and the Association.

16-7. Vacancies arising may be filled on a temporary basis until they can be filled in accordance with the provisions of Section 4, 5 and 6 of this Article.

16-8. All vacancies and positions shall be filled without regard to race, age, creed, color, religion, nationality, sex, or marital status.

ARTICLE 17

TRANSFERS

This article is subject to the New Jersey Supreme Court decision, August 2, 1978 (Ridgefield Park Education Association vs. the Board of Education of Ridgefield Park.)

17-1. The Board and the Association believe that frequent transfers of teachers from one school to another are inimical to the educational process and interfere with optimum teacher performance. Only true vacancies caused by establishment of new positions, resignation, retirement, termination or death shall be filled by transfers. Therefore, they agree as follows:

17-2. In all cases of transfer, the following shall apply:

17-2.1. In cases of *Voluntary* transfer, seniority begins when the teacher assumes the new position.

17-2.2. In cases of *Involuntary* transfer, the teacher shall retain all accrued seniority.

17-2.3. For the purposes of this Article, promotional and extra compensation positions applied for shall be deemed voluntary transfers.

17-3. *Voluntary Transfers*

A teacher seeking transfer to another school shall submit a written request to the Superintendent of Schools no later than March 1st of the current year. The teacher shall state the reasons for the request, the school, grade and/or subject to which the teacher seeks transfer. Three (3) choices, in order of preference, if there be preference, shall also be stated. If none of the choices is available then the written request shall be deemed withdrawn,

17-3.1. In cases of voluntary transfer the following criteria shall be applied.

- A. Availability of vacancies.
- B. Seniority in the Jersey City Public Schools as a regular teacher.
- C. Seniority as a regular teacher in the school from which the transfer is requested.

17-3.2. Transfers from any school shall not exceed 5% of the teaching staff in that school so that maximum stability may be maintained in every school.

17-3.3. Convenience and wishes of the teacher requesting transfer will be honored when they do not conflict with the instructional requirements and the best interest of the school system.

17-3.4. When a request for transfer is not granted, the teacher shall be notified in writing by the office of the Superintendent of Schools.

17-3.5. A list of all transfers shall be made available to the Association immediately upon request.

17-4. *Involuntary Transfers*

17-4.1. The teacher involved shall be notified at a meeting with the principal or immediate superior of the intention to request the transfer and of the reasons therefore.

17-4.2. This meeting shall be held, under normal circumstances, three (3) days before the end of the school year.

17-4.3. The reason or reasons for the request shall also be set forth in writing and presented to the Superintendent of Schools and to the teacher.

17-4.4. In cases of involuntary transfer, the following criteria shall apply:

- A. For good cause
- B. Seniority in the Jersey City Public Schools as a regular teacher.
- C. Seniority as a regular teacher in the school from which the transfer is requested.

17-5. The teacher involved in an involuntary transfer may, if aggrieved, use the Grievance Procedure commencing at Step III.

17-6. Transfers made during the summer vacation by the Superintendent of Schools shall be governed by the methods and criteria applicable to involuntary transfer.

ARTICLE 18

STUDENT DISCIPLINE

The Board and the Association agree that:

18-1. Teachers have a primary disciplinary responsibility.

18-2. It is the responsibility of administrators to support the teacher in this role.

18-3. Teachers have the right to recommend the suspension of pupils from their classes.

18-4. This procedure shall not contravene any statutory provision affecting the right of the principal to suspend.

18-5. When, in the judgment of a teacher, a student is by his behavior seriously disrupting the instructional program to the detriment of other students, the teacher may send the student to the principal. In such cases, the principal shall arrange as soon as possible—and under normal circumstances not later than the conclusion of the following school day—a conference among himself, the teacher, the parent, and possibly an appropriate specialist, to discuss the problem and to decide upon appropriate steps for the child's return.

ARTICLE 19

TEXTBOOKS, TEACHING MATERIALS, AND SUPPLIES

19-1. The Board shall allocate sufficient funds to provide for the purchase and/or replacement of textbooks, library books, instructional materials, supplies, and equipment of sufficient quality and quantity to enable teachers properly to fulfill their teaching responsibilities.

19-2. To be sure that all textbooks are available for the first day of school, textbooks should be ordered in time for an August 15th delivery. Transfer of books between schools shall be facilitated.

19-3. **QUANTITIES.** All schools should have, in sufficient number and kind, such audio-visual

equipment as: record players, tape recorders, film and filmstrip projectors, opaque-overhead-slide projectors, televisions, radios, and all accompanying multi-media instructional materials. This shall also include all duplicating and copying machines and materials.

19-4. **AVAILABILITY.** All such multi-media instructional devices and materials shall be arranged and located to facilitate maximum utility by all members of the instructional staff, under the auspices of the principal.

19-5. Petty cash funds shall be established at each school in the following amount for each school year.

School with 0-500 students	\$150.
School with 501-1000 students	\$200.
School with 1001-1500 students	\$250.
School with 1501 and more students	\$300.

ARTICLE 20

TEACHING CONDITIONS

(Preparation-on-call periods)

20-1. **PREPARATION PERIOD**—Each teacher is to have an uninterrupted preparation period each day, when possible. The practice of using a regular teacher as a substitute, thereby depriving him of his preparation period, is undesirable and shall be done only in an emergency where regular substitutes are not available. Regular teachers shall first be assigned on a voluntary basis during their non-teaching time, prior to assignment on a rotating basis.

20-2. **HIGH SCHOOL**—Secondary teachers shall not be assigned to more than two (2) subject matter teaching preparations per day without full and sufficient cause.

20-2.1. The normal academic load of a teacher in the high schools shall consist of five (5) teaching periods, a home room, and a special assignment. In Physical Education, Industrial Arts, and other double-period subject areas, variation from the normal must occur.

20-2.2. Teaching periods will be spread out over the eight-period day so that, with the exception of teachers of double-period subjects, a teacher will normally teach no more than two periods consecutively. In all instances, efficient utilization of the school facilities and personnel must be accorded the highest priority to insure proper scheduling.

20-3. *ELEMENTARY SCHOOLS*—The Board and Association agree to strive for a goal of three (3) on-call periods per week in the elementary schools. This program shall be implemented by relieving teachers of classroom responsibilities when such specialists as teachers of art, music, industrial arts, home economics and physical education take over classes. Principals shall be encouraged to work toward this goal when scheduling specialists to assure uniform preparation time among each building faculty. The Board and Association agree that in cases of emergencies affecting the normal operation of the school, teachers may be called upon to cover classes. In such emergencies, available teachers will be selected from a rotating list to insure equitable distribution of such assignments.

20-4. In the event a classroom teacher is required to cover for an absent teacher, he-she shall be compensated per the following formula:

20-4.1. One day shall be added to the sick leave bank for every five (5) periods, (study, assigned duty or recitation) taken in the high schools.

Assumption of a Home Room assignment in the high schools shall be considered equal to one-half of a study, assigned-duty, or recitation period.

20-4.2. In the elementary schools, a teacher shall be given one additional sick leave bank day for every (5) on-call periods given to covering service.

20-4.3. A teacher shall be given an additional sick leave bank day for every five (5) days on which he-she takes extra pupils into his-her room.

20-4.4. All teachers who are not under tenure shall be required to submit lesson-plan books.

20-4.5. All teachers shall be required to have available emergency lesson plans to provide direction to substitute teachers.

20-4.6. All teachers shall plan their work and have such plans ready for presentation to authorized personnel at the time of supervisory visitations.

20-5. **NON-TEACHING DUTIES:** A joint committee of the Association and the Central Administration shall continue to study the feasibility of implementing an aide program to relieve teachers from non-teaching chores such as:

keeping attendance register
hall and playground duty
lunchroom supervision

Recommendations of this committee shall be forwarded to the Association and the Board from time to time.

20-6. The in-school work day for all teachers shall consist of not more than five (5) hours and forty-five (45) minutes which shall exclude a duty-free lunch period as guaranteed to teachers as follows:

20-7. **LUNCH PERIOD—HIGH SCHOOL:** All teachers in the high schools shall have a duty free lunch period of at least forty-five (45) minutes, except in instances where temporary scheduling (e.g. assembly days) may lessen the time for both pupils and teachers.

20-7.1. **LUNCH PERIOD, ELEMENTARY SCHOOL—**All teachers in the elementary schools shall have a duty-free lunch period of at least sixty (60) minutes, except for court duty which shall not exceed ten (10) minutes at the end of the lunch hour and shall be scheduled on a rotating basis.

20-7.2 Teachers of all Special Education classes shall have a duty-free lunch period of one-half hour. Lunchroom aides will be employed to effectuate the above.

ARTICLE 21

CLASS SIZE

21-1. The Board will continue to move toward attainment of the desired goal, class-size reduction, through its program of increased physical facilities.

21-2. The desirable median class size in elementary and secondary schools shall be 30 pupils, exclusive of health and physical education classes. Insofar as special education and kindergarten are concerned, State guidelines shall be followed, and these classes will not be used in computations to arrive at the median class size stated above.

ARTICLE 22

PROTECTION OF TEACHERS, STUDENTS, AND PROPERTY

22-1. The Board will provide such legal services as may be necessary to any teacher on whom any assault and/or assault and battery is made during the course of his-her employment.

22-2. When absence arises out of or from assault or injury while acting in discharge of duties, the teacher shall be entitled to full salary and other benefits for the period of such absence but shall not forfeit any sick leave or personal leave.

22-3. Teachers shall immediately report cases of assault, physical or verbal, suffered by them in connection with their employment to their principal or other immediate superior.

22-3.1. Such notifications shall be immediately forwarded to the Superintendent, who shall comply with any reasonable request from the teacher for information in the possession of the Superintendent relating to the incident or the persons involved, and shall act in appropriate ways as liaison between the teacher, the police, and the courts.

22-4. If criminal or civil proceedings are brought against a teacher alleging that he-she committed an assault in connection with his-her employment, the Board of Education shall furnish legal counsel to defend him-her in such proceedings.

22-5. Whenever any civil or administrative action has been or shall be brought (except an action, civil or administrative, instituted by the Board) against the teacher for any act or omission arising out of and in the course of the performance of his or her duties,

the Board shall defend such action and shall save harmless and protect such person from any financial loss resulting therefrom.

22-6. Should any criminal action be instituted against any such teacher for any such act or omission and should such proceeding be dismissed or result in a final disposition in favor of such teacher, the Board of Education shall reimburse such teacher for the cost of defending such proceeding, including reasonable counsel fees and expenses of the original hearing or trial and all appeals.

22-7. As specified in NJS 18A:6-1, a teacher may, within the scope of his employment, use and apply such amount of force as is reasonable and necessary: to quell a disturbance threatening physical injury upon the person or within the control of the pupil, for the purpose of self-defense; and for the protection of persons or property.

22-8. The Board shall reimburse teachers for the reasonable cost of any clothing or other personal property damaged or destroyed as a result of an assault suffered by a teacher while the teacher was acting in the discharge of his-her duties within the scope of his-her employment.

22-9. The Board of Education and the Association mutually agree that teachers shall not be required to work under unsafe or hazardous conditions, Any such conditions must be reported at once for correction to the principal or other responsible authority.

22-10. The Board and the Association shall develop mutually acceptable programs to guarantee the safety of students, teachers, and property immediately upon recognition of such a need.

ARTICLE 23

NUMBER OF DAYS AND HOURS OF EMPLOYMENT

23-1. Teaching Year:

23-1.1. No teacher shall be required to work more than one hundred and eighty (180) days per school year, except for the present orientation program for new teachers held each year.

23-1.2. This does not preclude voluntary professional **services** being rendered at the teacher's convenience.

23-2. **TEACHING HOURS:** It is agreed that teachers shall report and leave their assignments according to the following schedule:

High Schools 8:30 a.m. - 3:00 p.m.
A.E.H.S. 6:15 p.m. - 10:00 p.m.
Elementary Schools 8:30 a.m. - 3:15 p.m.
Special Education
(transported elementary 8:30 a.m. - 2:30 p.m.)
Home Instruction and Hospital
Teachers 8:30 a.m. - 3:15 p.m.
Visiting Teachers 8:30 a.m. - 3:15 p.m.
Attendance Officers 8:30 a.m. - 3:15 p.m.
Nurses School hours
Copenhagen-8:20 a.m.-12:20 p.m./12:30 p.m.-4:30 p.m. (Additional one and onehalf (1-1/2) hour preparation period.)

ARTICLE 24

PAYMENT OF SALARY CHECKS

24-1. All members of the bargaining unit shall receive two (2) salary checks every month for twelve (12) months. Such checks are to be received by the teacher on the 1st and the 16th. In the event the 1st or the 16th falls on a weekend or a non-school day, such check shall be received by the teacher on the last school day prior to such weekend or non-school day.

In every event, checks shall be received by the teacher prior to A.M. dismissal.

24-2. Summer payments will require completed self-addressed envelopes for mailing purposes.

ARTICLE 25

TEACHER NOTIFICATION

25-1. Regularly appointed teachers who are not under tenure shall be notified of their job status for the ensuing year on or before April 30, under normal circumstances.

25-2. Contract teachers shall be notified of their employment status for the ensuing year no later than April 1st.

ARTICLE 26

COACHES

26-1. **MEETINGS:** Association- Board Athletic Committee—The Board and the Association agree that, in order to achieve a more flexible and meaningful athletic program, members of the Board of Education's Athletic Committee will meet with representatives of the Association no less than three (3) times per year, (at least two (2) of these meetings shall be before January 1 of each school year), for purposes of discussing and planning activities of mutual concern.

26-2. **EVALUATION:** The responsibility of evaluating a coach's performance of duty during a game and in his preparation for a game shall be placed on the Director of Health and Physical Education—the Assistant Director of Health and Physical Education, the Principal of his school, and the Faculty Advisor of Athletics, and in those cases where applicable, the Supervisor of Girls Physical Education.

26-3. **RE-EMPLOYMENT:** Coaches will not be required to submit a yearly application for re-employment. Coaches will be notified of their re-employment within sixty (60) days after the conclusion of the season.

26-4. **ADVANCEMENT:** When a vacancy occurs in any Head Coaching position, appointment shall be given to an assistant coach active in that particular sport, based on seniority, experience, and evaluation reports within the system.

26-5. **FILLING VACANCIES:** Whenever a vacancy exists in a coaching position, notice of such vacancy shall be posted in all schools inviting those qualified to apply in writing. The written application shall be sent to the Director or Assistant Director of Health and Physical Education.

26-6. In the event a vacancy shall occur during the summer recess, notification shall be given in writing to the last known address of all coaches in that sport. The applicant shall have fifteen (15) days to indicate interest. In the event more than one indicates such interest, the final choice shall be made by the Board of Education.

26-7. When a vacancy occurs for the position of Faculty Advisor of Athletics, only coaches with five (5) years experience or members of the Physical Education Department shall be considered.

26-8. **ELEMENTARY SCHOOL TEACHERS:** Elementary school teachers with coaching positions shall be given an unassigned period at the end of each school day, where feasible, to facilitate their coaching responsibilities.

ARTICLE 27

HEALTH INSURANCE

27-1. The Board of Education shall make available to teachers individual coverage under the New Jersey Public and School Employees Health Benefits Plan, including Rider "J".

27-2. The Board shall provide the health-care insurance protection designated below.

27-2.1. The Board shall pay full premium for each teacher and, in cases where appropriate, for family-plan insurance coverage.

27-2.1:1. For each teacher who remains in the employ of the Board for the full school year, the Board shall make payment of insurance premiums to provide insurance coverage for the full twelve (12) month period commencing September 1st and ending August 31st. When necessary, premiums in behalf of the teacher shall be made retroactively or prospectively to assure uninterrupted participation and coverage.

27-2.1:2. Provisions of the health-care insurance program shall be detailed in master policies and contracts agreed upon by the Board and the Association and shall include:

- a. Hospital room and board and miscellaneous costs.
- b. Out-patient benefits.
- c. Laboratory fees, diagnostic expenses, and therapy treatments.
- d. Maternity costs.
- e. Surgical costs.
- f. Major-medical coverage.
- g. An individual dental plan will be provided.
- h. An individual prescription plan will be provided.

27-2.2. The Board shall provide to each teacher a description of the health-care insurance coverage provided under this section which shall include a clear description of conditions and limits of coverage as listed above.

27-2.3. The Board shall provide each teacher with a \$2,500 life insurance policy and a \$2,500 death and dismemberment policy. Upon retirement, the life insurance coverage shall be decreased to \$1,000 for each retired teacher, and the death and dismemberment policy shall be cancelled. The premium for the post-retirement life insurance in the amount of \$1,000 shall be borne by the retiree.

ARTICLE 28

ACADEMIC FREEDOM

28-1. In our representative democracy, in which ultimate power is retained by the people and exercised through delegation of authority, the Board and the Association advocate the realization of the full potential of each individual by recognition of and respect for his-her dignity. It therefore follows that the education of each individual must develop the essential fundamental processes and those skills, understandings, and attitudes which will affect his-her harmonious development as a spiritual, intellectual, physical, emotional, and social being. It is recognized that these democratic values can best be transmitted in an atmosphere which is free from censorship and artificial restraints upon free inquiry and learning, and in which academic freedom for teacher and student is encouraged.

28-2. Academic freedom shall be guaranteed to teachers, and no special limitations shall be placed upon study investigation, presenting and interpreting facts and ideas concerning man, human society, the physical and biological world, and other branches of learning, which do not conflict with the philosophy, underlying principles, objectives and content of the courses of study adopted by the Board of Education.

ARTICLE 29

SPECIALISTS

29-1. The Board shall employ, during the life of this Agreement, additional specialists to meet the needs of the school system to the extent that availability of funds, space, and personnel permit.

29-2. The Board agrees that the number of specialists employed shall not be reduced by the Board during the term for this Agreement.

29-3. For and during the life of this Agreement, the Board will provide at least nineteen (19) specialists who will be hired in accordance with educational needs.

29-4. For and during the life of this Agreement, the Board will provide one (1) mobil learning center in addition to those that may be in existence in accordance with educational needs.

29-5. For and during the life of this Agreement, the Board will provide reading labs in three (3) schools in addition to those that may be in existence and in accordance with educational needs.

ARTICLE 30

SUBSTITUTE POOL

30-1. The number of substitutes in the Substitute Pool shall be maintained at no less than forty (40).

ARTICLE 31

EXTRA-COMPENSATION POSITIONS

31-1. Extra-compensation positions shall include, but not be limited to, those listed in Schedule H.

31-2. Whenever a vacancy exists in a position classified as an extra-compensation position, notice shall be posted in all schools inviting those qualified to apply in writing. (The notice shall contain experience and training criteria in addition to the duties and requirements of the position.)

31-2.1. In instances when immediate assignment is imperative, temporary assignment may be made. Notice of a vacancy shall be posted within five (5) school days after the vacancy occurs.

31-2.2. Selection of personnel to fill such vacancies shall be made by the Board from an alphabetical list of those who apply within the time specified in the announcement.

31-2.3. Notice of a vacancy shall be posted on the official school bulletin board in every school within five (5) school days after the vacancy occurs.

31-2.4. This category shall include, but not be limited to, such positions as:

- Summer School and After School Teaching
- Accredited Evening High School Teaching
- Athletic Coaches
- Book and Curriculum Evaluation positions
- Special Project positions

The Board shall select personnel to fill such positions on the basis of criteria published. Priority in selection of personnel for positions in the Accredited Evening High School shall be based on prior teaching experience in the Accredited Evening High School. Additional assignments shall be made from a list of those teachers in the Jersey City school system who apply in writing.

31-2.5. New positions, if and when established by the Board, shall be filled, by selection by the Board from those who apply in writing.

31-2.6. Notice of such new positions will be posted in all schools. Published notices will contain the duties, requirements and qualifications for the position.

31-3. Summer school openings shall be publicized, and teachers shall be notified of the action taken as early as possible.

31-3.1. In filling such positions, consideration shall be given to a tenured teacher's area of competence, major and/or minor field of study. Preference shall be given first to teachers regularly employed in the Jersey City Public Schools.

ARTICLE 32

SICK LEAVE

32-1. Every teacher shall be credited with fourteen (14) days of accumulative sick leave annually.

32-2. A teacher who has used the current personal illness leave days and cumulative personal illness leave account, upon the recommendation of the Superintendent of Schools and the approval of the Medical Director, may receive one (1) additional day for each year of service as a regularly appointed teacher in the Jersey City Public Schools, with a minimum of ten (10) days, unless fewer are required. These additional days shall be called "permissive personal illness leave" and shall not be cumulative, and shall not be granted more than twice, but only once in any given school year. Individual days of absence not requiring a leave of absence may not be applied against permissive leave. If a teacher has not used his-her entire permissive leave in a school year, he-she may request the Superintendent of Schools, in writing, to apply the unused days within that school year (to June 30) to a new illness leave (five (5) days or more), if such is necessary, prior to expiration of that current school year.

32-3. A teacher who has served from one (1) to ten (10) years in the Jersey City School System shall be allowed an absence beyond the accumulated personal illness leave and the permissive personal illness leave not greater than forty (40) days in any one school year during which period he-she shall forfeit one-half (1/2) substitute's per diem pay.

32-4. A teacher who has served ten (10) or more years in the Jersey City School System shall be allowed an absence beyond the accumulated personal illness leave and the permissive personal illness leave not greater than eighty (80) days in any one school year, during which period he-she shall forfeit one-half (1/2) substitute's per diem pay.

32-5. To be eligible for benefits provided for in sections 32-3 and 32-4, a teacher must meet the requirements of section 32-2.

32-6. Salary payment shall be discontinued in case of absence in any one school year which exceeds that enumerated in the preceding paragraphs.

32-7. Deductions for absence of teachers in the Jersey City Public Schools on days when the schools are in session less than the customary five and one half (5-1/2) hours shall be computed on the basis of the actual number of hours lost by such teachers while school was in session.

ARTICLE 33

ACCUMULATED SICK LEAVE INCENTIVE PLAN

33-1. The teacher, upon resignation after ten (10) years of regularly appointed service or upon retirement, shall receive a lump sum payment equivalent to one-half (1/2) of the current substitute per diem pay for each unused day accumulated in his-her personal illness leave bank after July 1, 1956. In the event of death before retirement, the teacher's estate shall receive the lump sum payment described herein.

33-2. A teacher who has at least three (3) years of service within the Jersey City School District shall have the option of trading in one-half (1/2) of the sick days that he-she has accumulated in Jersey City after September 1, 1972, at a rate equal to one-half (1/2) of the prevailing substitute per diem pay.

ARTICLE 34

OTHER ABSENCE

34-1. **ABSENCE FOR DEATH IN FAMILY—** In case of death of a parent, brother, sister, husband, wife, child, stepchild, or relative who is a member of the immediate household of a teacher, the teacher shall be excused without loss of pay or accumulated leave not to exceed five (5) consecutive calendar days.

34-2. ABSENCE FOR DEATH OF RELATIVE—

In case of the death of a relative not included in the above section, a teacher shall be excused for the day of the funeral without loss of pay or accumulated leave. The definition of "relative" in this section shall include the following: grandfather, grandmother, uncle by consanguinity (but not affinity), aunt by consanguinity (but not affinity), nephew, niece, cousin by consanguinity (first cousin only, and not cousin's wife or husband), father in law, mother in law, brother in law (direct), sister in law (direct), son in law, daughter in law, grandchild, stepfather, and stepmother.

34-2.1. In the event of the death of an active faculty member, the faculty of the school shall be excused for a portion of the day to allow the faculty to attend services.

In the event that the school cannot meet the state required hours for attendance or if scheduling difficulties prohibit this, a representative group of the faculty members shall be excused to attend the services.

34-3. ABSENCE FOR RELIGIOUS OBSERVANCE—Teachers may be excused for no more than three (3) days per year for religious observance. Deduction in salary for such days will be one-half (1/2) substitute's per diem pay.

34-4. ABSENCE BY REASON OF QUARANTINE OR COURT ORDER—A teacher absent from school by reason of quarantine by the Board of Health shall not suffer deductions in pay for such absence.

34-4.1. A teacher absent in compliance with the requirements of a court order shall not suffer deductions in pay for such absence provided he-she is served with a subpoena or summons and evidence of such service is supplied to his-her principal or department head and the absence is approved by the Superintendent of Schools.

34-4.2. ABSENCE OF NIGHT SCHOOL TEACHER FROM DAY SCHOOL—If a teacher in a day school who is employed also in an evening school shall be absent from the day school and teach in the

evening school on the evening of the day of absence from the day school, the teacher shall not forfeit per diem pay for the absence from the day school.

34-5. REPORT OF ABSENCE—A teacher who is absent from duty because of personal illness, death in the family, quarantine, or compliance with the requirements of a court shall notify the principal as early as possible, and such notification shall be given in advance where possible. A teacher who is absent from duty for any other reason shall first secure permission from the Superintendent of Schools through the principal.

34-5.1. The teacher shall, in reporting absence for personal illness, communicate to the principal the probable duration of the illness.

34-5.2. Teachers absent for any period of five (5) days or less must, on return, complete, sign and file with the principal, on forms to be supplied by the Board, a personal certificate as to the necessity of the absence.

34-6. NOTIFICATION OF RETURN AFTER ABSENCE—A teacher who has been absent for two (2) days or more shall, before the end of the school day prior to his-her return, notify the principal of his-her expected return.

ARTICLE 35

MATERNITY LEAVE

(The article set forth below is subject to recent Court decisions.)

35-1. LEAVE OF ABSENCE FOR MATERNITY—Any regularly appointed member of the teaching staff who is a married woman and who is pregnant shall file, with the Superintendent of Schools, not later than three (3) months before the expected birth of the child, an application for a maternity leave, together with a physician's certificate setting forth the date of the expected birth. She shall be eligible, thirty (30) days hence, to receive, upon the recommendation of the Superintendent of Schools, maternity leave, without pay, for two (2) calendar years and such additional time as will permit the leave of absence to terminate on the following August 31st.

35-2. Any teacher who may become pregnant during a leave of absence granted for prior pregnancy may apply. for one (1) additional leave for maternity.

35-3. Upon request, an additional leave of one (1) year may be granted for child care. This may not be renewed after expiration.

35-4. The Superintendent of Schools, for proper cause and upon application of the teacher, may recommend the termination of the leave for approval of the Board of Education prior to its proper date of termination.

35-5. Any teacher not regularly appointed who becomes pregnant shall so notify the Superintendent of Schools, in writing, not later than three (3) months before the expected birth of the child, and her services shall be terminated, forty-five (45) days hence, until her return to service may be approved by the Medical Director.

35-6. *ILLNESS AS A RESULT OF PREGNANCY*—Should any teacher, absent on maternity leave, develop any illness or malady as a result of such pregnancy, and be unable to resume her work at the end of her said leave because of such illness or malady, she may be granted further leave of absence, not to exceed one (1) year, without pay, upon the recommendation of the Medical Director of the Board of Education, and subject to the approval of the Board of Education, until she has recovered from such illness.

35-7. Any teacher adopting a child shall be eligible to receive leave similar to maternity leave which shall commence upon his or her receiving de facto custody of said child, or earlier if necessary to fulfill the requirements for the adoption.

ARTICLE 36

SABBATICAL LEAVE FOR STUDY OR FOR REST AND RECUPERATION

36-1. *LEAVE OF ABSENCE FOR STUDY*—A leave of absence for the purpose of study shall be granted by the Board of Education to any member

of the teaching staff who has performed continuous and satisfactory service in the public schools of Jersey City for at least seven (7) years. The nature and scope of the study must be approved by the Superintendent of Schools.

36-1.1. A teacher to whom this leave of absence is granted shall be eligible for promotion in salary as if on active duty.

36-2. LEAVE OF ABSENCE FOR REST AND RECUPERATION—A leave of absence for the purpose of rest and recuperation shall be granted by the Board of Education to any member of the teaching staff who has performed continuous and satisfactory service in the public schools of Jersey City for at least fifteen (15) years.

36-2.1. A teacher to whom this leave of absence is granted shall be eligible for promotion in salary as if on active duty.

36-3. COMPENSATION DURING LEAVE FOR STUDY OR FOR REST AND RECUPERATION—A teacher absent on leave for study or for rest and recuperation shall receive, as compensation, one-half (1/2) of his or her monthly salary for each month during the continuance of such leave.

36-3.1. This compensation shall be paid in the same manner and at the same time as salaries are paid to other members of the teaching staff.

36-4. LENGTH OF AND TIME OF BEGINNING LEAVE FOR STUDY OR REST AND RECUPERATION—A leave of absence for study or for rest and recuperation granted under this rule shall be for a period of twelve (12) months beginning September 1st. Teachers on such leave may request cancellation of such leave at any time.

36-5. TIME OF APPLICATION FOR LEAVE FOR STUDY OR FOR REST AND RECUPERATION—Application for leave of absence for rest and recuperation should be presented to the Superintendent of Schools at least three (3) months before the beginning of the desired leave. Application for leave of absence for study should be presented to the Superintendent of Schools at least four (4) months before the beginning of the desired leave.

The applicant shall sign a contract to serve in the public schools of this city for at least two (2) years after the expiration of the leave. The Superintendent of Schools shall report these applications to the Board at its next meeting.

36-6. USE OF LEAVE FOR STUDY OR REST AND RECUPERATION—The Board of Education shall require all teachers to whom leaves of absence are granted for study or for rest and recuperation under these rules to carry out fully all the details of the program of study presented in the application for leave, or to devote themselves to the purpose of rest and recuperation, and to refrain from engaging in any remunerative occupation during the continuance of the leave of absence. Tuition grants, scholarships, grant-in-aids, Federal Government grants, or stipends, etc., shall not be considered as remuneration. Teachers on leave of absence for study shall present to the Superintendent of Schools, at such time as he may require, certificates signed by proper authorities, of the beginning, continuance and completion of the course of study chosen.

36-6.1. For its own protection and the protection of the schools, the Board will, in any case of violation, terminate the leave of absence and will regard such violation as evidence of conduct unbecoming a teacher, within the purview of the Tenure of Office Act.

ARTICLE 37

LEAVE FOR PERSONAL BUSINESS

37-1. LEAVE OF ABSENCE FOR PERSONAL BUSINESS—Leave of absence for personal business may be granted by the Board of Education for such periods as the Board may decide, said period may not exceed one (1) year. Teachers on such leave may request extension of such leave for good and valid cause. Those to whom such leave is granted shall suffer loss of pay and must state, in writing, that they will not accept another position as administrator, supervisor or teacher during that period.

37-2. Teachers shall be entitled to two (2) personal business days per year without loss of pay.

The personal business days shall not be cumulative.

UNUSED PERSONAL BUSINESS DAYS SHALL BE TRANSFERRED TO SICK LEAVE BANK.

37-2.1. One who requests a personal business day shall submit his request, on the form prescribed, to the principal in time to allow the request to reach the Office of the Superintendent of Schools three (3) days prior to the day of leave.

37-2.2. In the case of a personal emergency, the requirement of a prior written request will be waived by the Superintendent of Schools.

37-2.3. Except in the case of personal emergency, personal business leave days may not be taken on:

- A. The first or last week of the school year
- B. The day before or after a school holiday
- C. The day prior to or immediately following a vacation period within the school year.

ARTICLE 38

LEAVE OF ABSENCE FOR MILITARY SERVICE

38-1. **FIELD TRAINING OR ATTENDANCE AT SERVICE SCHOOLS**—A regularly appointed or contract teacher who is required to undergo military field training or to attend service school for a period of two (2) weeks or less during any school year shall be granted leave of absence with pay.

38-2. Whenever such military field training or attendance at service schools requires that the teacher remain for a longer period than the prescribed two (2) weeks, the teacher shall receive the difference between his pay and his military pay for the remainder of such time, provided that such additional time of training or service school attendance is not in excess of one (1) calendar month during any school year. Should any military field training or attendance at service schools in excess of that granted above be required in the same school year, military leave without pay for each additional period shall be granted.

38-3. LEAVE FOR EXTENDED ACTIVE MILITARY SERVICE—Any regularly appointed or contract teacher entering active military service with the Armed Forces of the United States shall be granted military leave without pay for the period of his-her service.

38-3.1. The members of the National Guard and the Naval Militia shall receive the difference between their pay and military pay in accordance with Revised Statutes of New Jersey 38:12-4.5.

38-3.2. Re-enlistment in active military service shall be considered as resignation unless such re-enlistment is required in accordance with Federal Law governing military service.

ARTICLE 39

COMMITTEE REPRESENTATION

39-1. The President of the Association shall have the exclusive right to designate the representatives of the Association to serve on all committees.

ARTICLE 40

COMMITTEES

40-1. The joint **SCHOOL FACILITIES PROGRAM AND EMERGENCY SCHOOL BUILDING AID COMMITTEE** shall continue to evaluate school facilities and emergency school building aid from the State Government and to make recommendations regarding same to the Board.

40-2. The joint **INSTRUCTIONAL COMMITTEE** consisting of four (4) representatives of the Board—three (3) members of the Association, and one (1) representative of the Jersey City Parents Council shall meet bi-monthly during the school year and advise the Board and the Association on such matters as textbook evaluation, curriculum revision and other educational matters regarding the effective operation of the Jersey City School District.

40-3. MENTAL HEALTH AND DRUG USE CLINIC—The Board shall establish a committee to study the establishment of a mental-health and drug-

use clinic. The clinic would provide mental-health services to carry out the recommendations of psychologists and psychiatrists. The clinic would also make preventive diagnoses in the area of drug abuse. The committee shall consist of three members appointed by the Board and two by the Association.

40-4. The joint **SPECIAL EDUCATION COMMITTEE** consisting of three (3) representatives of the Board and three (3) members of the Association shall continue to evaluate the existing special education program and to make recommendations for implementation of further special education programs to the Board.

40-5. **IN-SERVICE TRAINING**—To encourage members of the Professional Staff in the Jersey City Public Schools to improve their professional skills, the Board agrees to provide in-service courses each year, the nature and content of such courses to be decided by the Board and association representatives, To plan and implement such in-service training, a committee shall be established with five members—three to be named by the Association and two to be named by the Board.

40-6. The **SUPERINTENDENT'S COMMITTEE ON FEDERAL FUND PROJECTS**—This committee shall develop projects to be undertaken with federal funds. The superintendent shall appoint those teachers selected by the Association.

40-7. The joint **SCHOOL PARKING FACILITIES COMMITTEE** consisting of two (2) representatives from the Board and two (2) members from the Association shall investigate the availability of space and the feasibility of utilizing such space at each school site for the purpose of parking facilities for members of this bargaining unit. This committee shall submit a written report with recommendation within the 1978-80 school years.

40.8. The joint **COMMITTEE ON TEACHER EVALUATION** shall continue to meet to prepare joint recommendations as to policy regulating the supervision and evaluation of teachers.

40-9. The joint **COMMITTEE ON NON-TEACHING DUTIES** shall continue to study the

feasibility of implementing an aide program and shall forward recommendations to the Association and the Board from time to time.

40-10. The **ATHLETIC AWARDS COMMITTEE** comprised of members of the Board and representatives of the Association shall continue to evaluate and establish a system of awards for athletic contests.

ARTICLE 41

BREAKFAST PROGRAM

41-1. The Board supports the concept of a school breakfast program as established under Federal guidelines and agrees to continue the joint **BREAKFAST COMMITTEE** consisting of three (3) representatives of the Board and two (2) members of the Association. The Committee shall report to the Board periodically on progress achieved.

ARTICLE 42

TEACHER EMPLOYMENT

42-1. The Board shall hire—to the fullest extent possible—only fully certified teachers holding standard certificates issued by the New Jersey State Board of Examiners for every teaching assignment.

ARTICLE 43

DRIVER EDUCATION

43-1. The Board will consider the matter of providing behind-the-wheel instruction as part of the existing driver education course. The Board shall make use of at least two driving simulators in existing driver education courses.

ARTICLE 44

SPECIAL CLASSES

44-1. The Board shall establish during the life of this Agreement new classes to meet the needs of the school system to the extent that availability of funds, space, and personnel permit.

ARTICLE 45

BI-LINGUAL TEACHERS

45-1. The Board shall employ during the life of this Agreement additional bi-lingual teachers to the extent that availability of funds, space, and personnel permit.

ARTICLE 46

BUREAU OF PUPIL PERSONNEL SERVICES

46-1. The Board shall establish a men's faculty lounge equipped with a refrigerator, cooking unit, plumbing facilities, and lounge chairs.

46-2. The Board shall equip the Bureau of Pupil Personnel Services with ten (10) tape recorders and ten (10) dictaphones.

46-3. An annual program of professional improvement shall be conducted during school hours for all professional members of the Bureau of Pupil Personnel Services, the program shall include expert speakers in related fields from outside the Jersey City School System. In addition to the two presently allowed visitation days, each member of the Bureau's professional staff may attend, without loss of pay, one professional meeting in an appropriate field outside of Jersey City. Permission shall be requested from the Superintendent of Schools three (3) days in advance.

ARTICLE 47

COST OF PRINTING CONTRACT

47-1. The Board and the Association each agree to pay one-half (1/2) of the costs for the final printing of 4,000 copies of this contract agreement in booklet form. The Association will prepare the contract form and submit names of printers to the Board for selection.

ARTICLE 48

CENTRAL REGISTER

48-1. One central register will be added to existing central registers during each of the two years of this agreement.

ARTICLE 49

SEPARABILITY AND SAVINGS

49-1. Should any portion of this Agreement be held unlawful and unenforceable by any court of competent jurisdiction, such decision of the court shall apply only to the specific portion of the

Agreement affected by such decision, whereupon the parties agree immediately to negotiate a substitute for the invalidated portion thereof.

ARTICLE 50

FULLY BARGAINED PROVISIONS

50-1. This Agreement represents and incorporates the complete and final understanding and settlement by the parties on all bargainable issues for the life of this Agreement, and neither party shall be required to negotiate on any subject unless they mutually agree to do so.

ARTICLE 51

MISCELLANEOUS

51-1. There shall be no reprisals of any kind taken by the Board, its servants, agents, or employees against any teacher or member of the JCEA by reason of membership in the JCEA or participation of its activities or by reason of his-her employment and/or his-her school-connected activities.

51-2. The President of the JCEA shall be permitted to attend to Association affairs to the same degree as was true prior to the 1978-80 school year, and shall continue to be granted adequate office facilities.

51-3. The Association agrees that teachers will, if requested, meet with parents during the evening not more than twice during the school year exclusive of the traditional open-house practice. One of said three (3) meetings shall be held after school hours and the other two (2) shall be held in the evening.

ARTICLE 52

DURATION

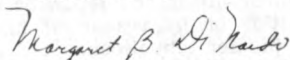
52-1. The provisions of this Agreement shall be effective as of September 1, 1978, and shall remain in full force and effect until August 31, 1980, subject to the right of the Board and Association to negotiate for a modification of this Agreement as provided in Article 3 of said Agreement.

52-2. All present conditions covered by any previous Agreement and those items now in effect as regular employer-employee practice shall remain in effect unless otherwise provided for in the 1978-80 Contract or unless changed hereinafter by mutual consent.

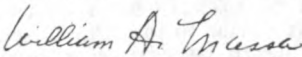
52-3. The Board recognizes that the statements contained in *Board's Policies, Administrative Rules and Regulations, School Board Bylaws* are not to stand in conflict with existing collective-bargaining agreements and, in the event that any statement of the *Board's Policies, Administrative Rules and Regulations, School Board Bylaws* should conflict with such collective-bargaining agreements, then such statement shall be modified to the extent necessary to conform to such collective-bargaining agreements.

IN WITNESS WHEREOF, the parties hereto have caused these presents to be signed by their duly authorized officers this 30th day of November, 1978.

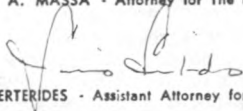
**BOARD OF EDUCATION OF THE
CITY OF JERSEY CITY**



MARGARET B. DI NARDO - Assistant Superintendent of Schools



WILLIAM A. MASSA - Attorney for The Board of Education

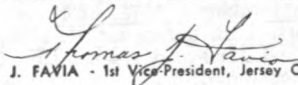


LOUIS SERTERIDES - Assistant Attorney for The Board of Education

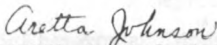
**JERSEY CITY EDUCATION
ASSOCIATION**



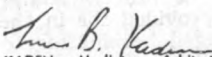
LOUIS T. SCIALLI - President, Jersey City Education Association



THOMAS J. FAVIA - 1st Vice-President, Jersey City Education Association



ARETTA JOHNSON - 2nd Vice-President, Jersey City Education Association



LEWIS B. KADEN - Mediator - Arbitrator

SCHEDULE A

September 1, 1978 to January 31, 1979

Step	Bachelor	Master or	Master † 32	Earned
		* Bachelor	or	
		† 32	*Bachelor † 64	Doctorate
1	11,400	12,100	12,800	13,500
2	11,850	12,550	13,250	13,950
3	12,300	13,000	13,700	14,400
4	13,650	14,350	15,050	15,750
5	14,100	14,800	15,500	16,200
6	14,550	15,250	15,950	16,650
7	15,000	15,700	16,400	17,100
8	15,450	16,150	16,850	17,550
9	15,900	16,600	17,300	18,000
10	16,350	17,050	17,750	18,450
11	16,800	17,500	18,200	18,900
12	17,750	18,450	19,150	19,850
13	19,100	19,800	20,500	21,200

* This phase of the equivalency program is restricted to teachers appointed prior to September 1, 1963. Teachers appointed on or after September 1, 1963 must possess a Master's Degree to be eligible for advanced salary standing.

Effective February 1, 1979 to January 1, 1980

Step	Bachelor	† 32	*Bachelor † 64	Doctorate
		Master † 32	Master or	
		or	* Bachelor	Earned
1	11,750	12,450	13,150	13,850
2	12,200	12,900	13,600	14,300
3	12,650	13,350	14,050	14,750
4	14,000	14,700	15,400	16,100
5	14,850	15,550	16,250	16,950
6	15,300	16,000	16,700	17,400
7	15,750	16,450	17,150	17,850
8	16,200	16,900	17,600	18,300
9	16,650	17,350	18,050	18,750
10	17,100	17,800	18,500	19,200
11	17,550	18,250	18,950	19,650
12	18,500	19,200	19,900	20,600
13	20,400	21,100	21,800	22,500

* This phase of the equivalency program is restricted to teachers appointed prior to September 1, 1963. Teachers appointed on or after September 1, 1963 must possess a Masters Degree to be eligible for advanced salary standing .

SCHEDULE A

September, 1979

Incremental increases will be granted September 1, 1979.

* This phase of the equivalency program is restricted to teachers appointed prior to September 1, 1963. Teachers appointed on or after September 1, 1963 must possess a Masters Degree to be eligible for advanced salary standing .

Effective February 1, 1980

Step	Bachelor	Master † 32		Master or or * Bachelor † 64		Earned
		† 32	* Bachelor † 32	* Bachelor † 64	Doctorate	
1	12,200	13,100		14,000		14,900
2	12,650	13,550		14,450		15,350
3	13,100	14,000		14,900		15,800
4	14,450	15,350		16,250		17,150
5	15,775	16,675		17,575		18,475
6	16,225	17,125		18,025		18,925
7	16,675	17,575		18,475		19,375
8	17,125	18,025		18,925		19,825
9	17,575	18,475		19,375		20,275
10	18,025	18,925		19,825		20,725
11	18,475	19,375		20,275		21,175
12	19,325	20,225		21,125		22,025
13	21,000	21,900		22,800		23,700
14	21,925	22,825		23,725		24,625

* This phase of the equivalency program is restricted to teachers appointed prior to September 1, 1963. Teachers appointed on or after September 1, 1963 must possess a Masters Degree to be eligible for advanced salary standing .

SCHEDULE B

SCHOOL PSYCHOLOGISTS

September 1, 1978 to January 31, 1979

Effective September 1, 1978

Step	M. A.	M. A. † 32	DR.
1	18,192	18,853	19,515
2	19,587	20,249	20,910
3	20,182	20,844	21,505
4	20,778	21,439	22,101
5	21,968	22,630	23,291

Effective February 1, 1979
SCHOOL PSYCHOLOGISTS

Step	M. A.	M. A. † 32	DR.
1	18,200	18,900	19,600
2	19,600	20,300	21,000
3	20,200	20,900	21,600
4	20,800	21,500	22,200
5	22,000	22,700	23,400
6	23,300	24,000	24,700

SEPTEMBER 1, 1979

Incremental increases will be granted Sept 1, 1979

Effective February 1, 1980

1	18,200	18,900	19,600
2	19,600	20,300	21,000
3	20,200	20,900	21,600
4	20,800	21,500	22,200
5	22,000	22,700	23,400
6	23,300	24,000	24,700
7	24,400	25,300	26,200

SCHEDULE C

ATTENDANCE OFFICERS

Effective September 1, 1978

Step	B. A.	M. A.
1	10,709	11,140
2	11,959	12,390
3	12,409	12,840
4	12,859	13,290
5	13,309	13,740
6	13,759	14,190
7	14,209	14,640
8	14,659	15,090
9	15,109	15,540
10	15,909	16,340

ATTENDANCE OFFICERS

Effective February 1, 1979

<i>Step</i>	<i>B. A.</i>	<i>M. A.</i>
1	10,900	11,600
2	12,150	12,850
3	12,600	13,300
4	13,050	13,750
5	13,500	14,200
6	14,500	15,200
7	15,000	15,750
8	15,600	16,300
9	16,150	16,850
10	17,000	17,700

Effective September 1, 1979

Incremental increase will be granted

Effective February 1, 1980

1	11,100	12,000
2	12,350	13,250
3	12,800	13,700
4	13,250	14,150
5	13,700	14,600
6	15,100	16,000
7	15,650	16,550
8	16,200	17,100
9	16,750	17,650
10	18,200	19,100

SCHEDULE D

SCHOOL NURSES

PROVISIONAL CERTIFICATION

Effective September 1, 1978

<i>Step</i>	<i>No Degree</i>	<i>Bachelor</i>	<i>Master</i>
1	\$10,390	\$10,709	\$11,040
2	11,640	11,959	12,290
3	12,090	12,409	12,740
4	12,540	12,859	13,190
5	12,990	13,309	13,640
6	13,440	13,759	14,090
7	13,890	14,209	14,540
8	14,340	14,659	14,990
9	14,790	15,109	15,440
10	No Step	15,909	16,240

Effective February 1, 1979

NON-DEGREE

Step

1	10,600
2	11,850
3	12,300
4	12,750
5	13,200
6	13,750
7	14,300
8	14,850
9	15,700

Effective September 1, 1979

Incremental increases will be granted

Effective February 1, 1980

NON-DEGREE

1	10,800
2	12,050
3	12,500
4	12,950
5	13,750
6	14,300
7	14,850
8	15,400
9	16,700

SCHEDULE E

SUMMER SCHOOL

Summer school payment for teaching services rendered during summer school will be at the rate of \$9 per hour.

SCHEDULE F

SUBSTITUTES

The per diem salary of substitute teachers shall be \$35.00.

SCHEDULE G

PRIOR SERVICE — LONGEVITY

The annual salary of any teacher who, at the time of the teacher's most recent employment in this system, had previous satisfactory experience as a certified teacher shall be increased within the salary guide in Schedule A as follows: Two hundred (\$200) dollars per year for each year of prior experience up to but not exceeding five (5) years of prior service.

Upon completion of 16 years of service in the Jersey City School System—\$500.

Upon completion of 20 years of service in the Jersey City School System—\$500.

Upon completion of 25 years of service in the Jersey City School System—\$500.

Upon completion of 30 years of service in the Jersey City School System—\$500.

This payment is in addition to the scheduled salary guide.

SCHEDULE H

Pre-Vocational Shop and Related-Work Teachers...

	\$ 200.
Teacher in Charge (Annex)	300.
Dean of Students	350.
Home Instruction Teachers	350.
Hospital Class Teachers	450.
Cardiac Class Teachers	450.
Remedial Arithmetic	550.
Lip Reading	650.
Neurologically Impaired	650.
Remedial Reading	650.
Socially and Emotionally Maladjusted	650.
Speech Correction	650.
Student Personnel Service	650.
Teachers of the Deaf	650.
Teachers of Sight Conservation	650.
Teachers of Mentally Handicapped, Educable & Trainable	650.
Learning Disability	1,050.
School Social Workers	1,050.

SCHEDULE I

FEMALE ATHLETIC COACHES

The annual salary of the following shall be increased above the salary guide based on the first step in Schedule A of the current salary guide as follows:

Basketball	4%
Volleyball	4%
Bowling	6.5%
Swimming	4%

Longevity

5 years	\$100.
10 years	\$100.
20 years	100.

The following amounts will be paid in addition to normal stipends:

Cheerleaders	\$100. per person
Varsity and Junior Varsity	\$100. per person
Twirlers	\$ 50. per person
Pep Squad	\$ 50. per person
Color Guard	\$ 50. per person
Strutters	\$ 50. per person

SCHEDULE J

MALE ATHLETIC COACHES

The annual salary of the following male athletic coaches shall be increased above the salary guide—based on the first step in Schedule A of the current salary guide—as follows:

Sport

Football	16%	Head Coach
	8%	Assistants
Basketball	16%	Head Coach
	8%	1st Assistant
	7.4%	2nd Assitant
Baseball	11.5%	Head Coach
	5.5%	Assistants
Cross Country	4%	Head Coach
	2%	Assistants
Indoor Track	5%	Head Coach
	3%	Assistants
Spring Track	8%	Head Coach
	4%	Assistants
Gymnastics	8%	
Swimming	7.4%	
Fencing	5%	
Bowling	5%	
Tennis	5%	
Faculty Advisor	16%	

Coaches shall receive an extended service increment of \$100 after five (5) years of service; a second \$100 extended-service increment after ten (10) years; and a third \$100 extended-service increment after twenty (20) years.

TENTATIVE SCHOOL CALENDAR 1979-80

Subject to revision by the Board

School Opens — Wednesday, September 5, 1979

Teachers report at 8:30 A.M.

Pupils report at 10:00 A.M.

School Closes — Wednesday, June 25, 1980

**(CLOSING FOR SNOW OR OTHER EMERGENCY
WILL BE MADE UP DURING THE SPRING —
EASTER RECESS)**

SEPTEMBER

S	M	T	W	T	F	S
						1
2	3	4	5	6	7	8
9	10	11	12	13	14	15
16	17	18	19	20	21	22
23	24	25	26	27	28	29
30						

18 days

OCTOBER

S	M	T	W	T	F	S
	1	2	3	4	5	6
7	8	9	10	11	12	13
14	15	16	17	18	19	20
21	22	23	24	25	26	27
28	29	30	31			

21 days

NOVEMBER

S	M	T	W	T	F	S
				1	2	3
4	5	6	7	8	9	10
11	12	13	14	15	16	17
18	19	20	21	22	23	24
25	26	27	28	29	30	

16 days

DECEMBER

S	M	T	W	T	F	S
						1
2	3	4	5	6	7	8
9	10	11	12	13	14	15
16	17	18	19	20	21	22
23	24	25	26	27	28	29
30	31					

15 days

JANUARY

S	M	T	W	T	F	S
		1	2	3	4	5
6	7	8	9	10	11	12
13	14	15	16	17	18	19
20	21	22	23	24	25	26
27	28	29	30	31		

17 days

FEBRUARY

S	M	T	W	T	F	S
					1	2
3	4	5	6	7	8	9
10	11	12	13	14	15	16
17	18	19	20	21	22	23
24	25	26	27	28	29	

17 days

MARCH

S	M	T	W	T	F	S
						1
2	3	4	5	6	7	8
9	10	11	12	13	14	15
16	17	18	19	20	21	22
23	24	25	26	27	28	29
30	31					

21 days

APRIL

S	M	T	W	T	F	S
		1	2	3	4	5
6	7	8	9	10	11	12
13	14	15	16	17	18	19
20	21	22	23	24	25	26
27	28	29	30			

16 days

MAY

S	M	T	W	T	F	S
				1	2	3
4	5	6	7	8	9	10
11	12	13	14	15	16	17
18	19	20	21	22	23	24
25	26	27	28	29	30	31

21 days

JUNE

S	M	T	W	T	F	S
1	2	3	4	5	6	7
8	9	10	11	12	13	14
15	16	17	18	19	20	21
22	23	24	25	26	27	28
29	30					

18 days

DAYS SCHOOL WILL BE CLOSED

Yom Kipper	-October 1
Columbus Day	-October 8
Election Day	-November 6
NJEA Convention	-November 8, 9
Veteran's Day Observance	-November 12
Thanksgiving Vacation	-November 22, 23
Christmas Vacation	-Dec. 24 - Jan. 1
Energy Conservation	-January 7 & 14
Martin Luther King, Jr.'s Birth.	-January 15
Energy Conservation	-January 21, 28 -February 4, 11
Lincoln's Birthday	-February 12
Washington's Birth. Observance	-February 18
Spring Recess - Easter Vacation	-April 4 - April 11
Memorial Day Observance	-May 26

TOTAL NUMBER OF DAYS - 180

NEGOTIATING TEAM

1978—80

Louis T. Scialli	Bureau of Pupil President Personnel Services
Thomas Favia	Ferris High School First Vice-President
Aretta Johnson	Bureau of Pupil Second Vice-President Personnel Services
Gail Hall	P.S. No. 25 Third Vice-President
Karen A. Neuhoff	P.S. No. 5 Corresponding Secretary
Frank Ammerata	Bureau of Pupil Treasurer Personnel Services
Thomas Fricchione	Academic High School Member at Large
Elba Perez Cinciarelli	P.S. No. 3 Member at Large
Albert dos Santos	Dickinson High School Member at Large
Michael Donohue	P.S. No. 25 Member at Large
Philip Feintuch, Esq.	Legal Counsel
Gerald Lange	NJEA Representative

JERSEY CITY BOARD OF EDUCATION

OFFICERS — 1978-79

Anthony M. Venutolo, M.A., President

Joseph Scott, M.A., Vice-President

MEMBERS

Gladys C. Nunery, M.A.

Santiago Bonilla

Dominick Pugliese

Robert C. Janiszewski, M.A.

Thornton Smith, M.A.

Pearl Gaither

Joseph Kraus

Michael Ross Superintendent of Schools

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NOTES AND MEMO

NOTES AND MEMO

J.C.E.A. CALENDAR 1978-79

Sept. 5 - Tues. Orientation of New Teachers
Sept. 6 - Wed. School Opens
Sept. 7 - Thurs. Board of Directors Meeting*
Sept. 29 - Fri. Welcome Cocktail Party
Oct. 4 - Wed. Executive Board Meeting
Oct. 12 - Thurs. Board of Directors Meeting
Oct. 31 - Tues. Executive Board Meeting
Nov. 2 & 3 NJEA Convention
Nov. 8 - Wed. Board of Directors Meeting
Dec. 6 - Wed. Executive Board Meeting
Dec. 13 - Wed. Board of Directors Meeting
Jan. 10 - Wed. Executive Board Meeting
Jan. 17 - Wed. Board of Directors Meeting
Feb. 7 - Thurs. Executive Board Meeting
Feb. 14 - Wed. Board of Directors Meeting
Mar. 7 - Thurs. Executive Board Meeting
Mar. 14 - Wed. Board of Directors Meeting
Mar. 16 - Fri. Spring Cocktail Party
Apr. 4 - Wed. Executive Board Meeting
Apr. 11 - Wed. Board of Directors Meeting
May 2 - Wed. Executive Board Meeting
May 9 - Wed. Open Directors' Meeting**
May 30 - Wed. Executive Board Meeting
June 6 - Wed. Board of Directors Meeting

* All Board of Directors Meetings 3:45 p.m.

** Open Directors Meeting (Tentative at Ferris High School) Open to all members.

J.C.E.A. CALENDAR 1979-80

Sept. 4 - Tues Orientation of New Teachers
Sept. 5 - Wed. School Opens
Sept. 6 - Thurs Board of Directors Meeting*
Oct. 3 - Wed. Executive Board Meeting
Oct. 5 - Fri. Welcome Cocktail Party
Oct. 10 - Wed. Board of Directors Meeting
Oct. 31 - Wed. Executive Board Meeting
Nov. 14 - Wed. Board of Directors Meeting
Dec. 5 - Wed. Executive Board Meeting
Dec. 12 - Wed. Board of Directors Meeting
Jan. 9 - Wed. Executive Board Meeting
Jan. 16 - Wed. Board of Directors Meeting
Feb. 6 - Wed. Executive Board Meeting
Feb. 13 - Wed. Board of Directors Meeting
Mar. 5 - Wed. Executive Board Meeting
Mar. 12 - Wed. Board of Directors Meeting
Mar. 14 - Fri. Spring Cocktail Party
Apr. 2 - Wed. Executive Board Meeting
Apr. 16 - Wed. Board of Directors Meeting
May 7 - Wed. Executive Board Meeting
May 14 - Wed. Open Directors' Meeting**
June 4 - Wed. Executive Board Meeting
June 11 - Wed. Board of Directors Meeting

* All Board of Directors Meeting 3:45 p.m.

** Open Directors Meeting (Tentative at Ferris High School) Open to all members.



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This report is authorized by law 29 U.S.C. 2.
Your voluntary cooperation is needed to make
the results of this survey comprehensive,
accurate, and timely.

O.
App.

APRIL 30, 1979

MAY 16 1979. *Ja.*

ASSISTANT SUPERINTENDENT OF SCHOOLS
JERSEY CITY BD OF EDUCATION
30 MONTGOMERY STREET
JERSEY CITY, NJ. 07302

PREVIOUS AGREEMENT EXPIRED
AUGUST 30, 1978

Gentlemen:

We have in our file of collective bargaining agreements a copy of your agreement(s):

JERSEY CITY NJ BD OF EDUCATION TEACHERS

WITH EDUCATION ASSOCIATION; NATIONAL
NEW JERSEY

Would you please send us a copy of your current agreement—with any supplements (e.g., employee-benefit plans) and wage schedules—negotiated to replace or to supplement the expired agreement. If your old agreement has been continued without change or if it is to remain in force until negotiations are concluded, a notation to this effect on this letter will be appreciated.

I should like to remind you that our agreement file is open for your use, except for material submitted with a restriction on public inspection. You may return this form and your agreement in the enclosed envelope which requires no postage.

Sincerely yours,

Janet L. Norwood
JANET L. NORWOOD
Acting Commissioner

PLEASE RETURN THIS LETTER WITH
YOUR RESPONSE OR AGREEMENT(S).

If more than one agreement, use back of form for each document. (Please Print)

1. Approximate number of employees involved 2,000
2. Number and location of establishments covered by agreement 32 Elementary 1 Middle school
5 High School
3. Product, service, or type of business Education
4. If your agreement has been extended, indicate new expiration date Aug. 31, 1980

Your Name and Position

Address

Area Code/Telephone Number

City/State/ZIP Code

X-8/80